

MICHAEL HATFIELD v. UNION PUBLIC UTILITY DISTRICT

Case No. 23CV46786

DEFENDANT UNION PUBLIC UTILITY DISTRICT'S DEMURRER TO PLAINTIFFS' FIRST AMENDED COMPLAINT

This action challenges a component of the rates charged by the Union Public Utility District, ("UPUD") which is an independent special district formed under the California Public Utility District Act (Public Utility Code, §§15501-17501) for water service to district customers. Plaintiff Michael Hatfield, a ratepayer and customer of UPUD, challenges the imposition and collection of portions of water rates charged to customers. The plaintiff seeks a certification of class action, a fee refund and a declaration that an element of the UPUD fee is invalid.

Defendant UPUD has demurred pursuant to Code of Civil Procedure section 430.10 (e), alleging plaintiff fails to state facts sufficient to constitute a cause of action in that the contentions are barred by the applicable statute of limitations outlined in Government Code section 53759 (a), and because the Court has no jurisdiction over the subject matter alleged in the First Amended Complaint due to Plaintiffs' failure to comply with the reverse validation procedures required by Government Code section 53759 (b).

Plaintiff requests a determination of the validity of specific rates, fees and charges. Although plaintiff does not cite a specific code section in the First Amended Complaint, CCP §§ 860-870 and Government Code section 53759 set forth the applicable period of limitations, the latter providing in pertinent part:

- (a) Any judicial action or proceeding to attack, review, set aside, void, validate, or annul an ordinance, resolution, or motion adopting a fee or charge for water or sewer service, or modifying or amending an existing fee or charge for water or sewer service, shall be commenced within 120 days of the effective date or of the date of the final passage, adoption, or approval of the ordinance, resolution, or motion, whichever is later.
- (b) Any action under this section by a local agency or interested person shall be brought pursuant to Chapter 9 (commencing with Section 860) of Title 10 of Part 2 of the Code of Civil Procedure, except that the time limits of subdivision (a) shall apply...

Pursuant to the reverse validation procedures, an interested party must obtain jurisdiction of all interested parties by publishing a summons in a newspaper that is directed to the public agency and "all persons interested in the matter." (CCP §§ 861, 861.1, 863.)

The Court grants plaintiff's request for Judicial Notice of the entirety of the UPUD rate study, fee policy and adopted rates. The First Amended Complaint does not, as is argued in the opposition, restrict its challenge to a single component of the overall rate; rather, it challenges the entire rate.

Judicial actions or proceedings to attack, review, set aside, void, raise Proposition 218 issues or annul an ordinance, resolution or motion fixing or changing rates or charges (such as a resolution setting a district's water rates) are subject to the 120-day statute of limitations (PU Code, § 14402; see also California Constitution, Article XIII D, § 6, subdivision (b)).

The Court SUSTAINS the demurrer to the First Amended Complaint in its entirety with 20 days leave to amend to address the statute of limitations and the court's jurisdiction shortcomings.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to California Rule of Court 3.1312 in conformity with this ruling.

RYAN v. HUTCHNSON

Case No. 19CV44070

**SECOND AMENDED MOTION FOR ORDER SUBSTITUTING
SUCCESSOR-IN-INTEREST**

This is a renewed motion to substitute defendant's estate as a party-defendant.

At the previous hearing, the Court continued the matter and ordered proper service of on all lawyers, including those representing the estate. (Additionally, if there was no opposition, the parties were encouraged to file a stipulation and order allowing the substitution.) No stipulation was filed nor any opposition. Proofs of Service on attorneys Brian Chavez-Ochoa and Theresa Haeefele is included with the Motion.

Order requesting substitution is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to California Rule of Court 3.1312 in conformity with this ruling.